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Review by: Herbert G. Gutman

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THE WORLD TWO CLIMETRICIANS MADE

A Review-Essay of $F+E=\frac{T}{C}$

Dem was de good ole times, marster-de bes' Sam ever seen.

THOMAS NELSON PAGE

HERBERT G. GUTMAN

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53

Robert William Fogel and Stanley L. Engerman, *Time on the Cross: The Economics of American Negro Slavery*, two volumes (Boston: Little, Brown and Company, 1974.)

HERBERT G. GUTMAN

Few books in United States history and certainly no book about the history of enslaved Afro-Americans published in the past two decades have attracted more popular notice and given more promise of provoking fierce controversy among historians and even lay persons than Robert William Fogel and Stanley L. Engerman's *Time on the Cross: The Economics of American Negro Slavery*.¹ Controversial because it challenges many "conventional" views about enslaved Afro-Americans, it does so by a nearly promiscuous exposure of "masses" of quantitative data. Such data and the methods accompanying it are celebrated for supplying vast ranges of new information which in turn—at least according to Fogel and Engerman—finally allow us to put aside decisively "racist" myths and to see the enslaved as well as their owners in a new light. Sambo, it turns out, was really a black Horatio Alger, made so by his owner who was nothing more than a rational profit-maximizer whose every day decisions were determined by the powerful imperatives of the "free market."

Although *Time on the Cross* (hereafter referred to as T/C) contains many arguments and much data about the "economics of slavery" that are new, the work's importance as well as the popular notice it has attracted has much less to do with that subject than with Fogel and Engerman's (hereafter referred to as F+E) striking statements about slave belief and behavior. T/C may have unusual value as economic history. It may turn out that the expected return on an investment in slaves "compared favorably with the most outstanding investment opportunities in manufacturing," that slaveholders were "optimistic" on the eve of the Civil War, that southern plantations were more "efficient" and more "productive" than northern free farms, and that the southern economy and southern per capita income grew rapidly between 1840 and 1860. (Prior to the publication of T/C, cliometricians, F+E prominently among them, published revisionist findings on these and related matters, findings, not surprisingly, that help fill the pages of

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**I am indebted to Mary Frances Berry, Paul David, Eric Foner, Judith Mara Gutman, and William Eric Perkins for their helpful comments on an earlier version of this review-essay.

¹T/C, two volumes, Boston, 1974.

T/C.²) That is for economic historians to dispute, and some have already done so.³ But whatever its importance as economic history, detailed examination of T/C—its major arguments and the evidence supporting them—shows convincingly that it is poor social history, that its analysis of the beliefs and behavior of “ordinary” enslaved Afro-Americans is entirely misleading, that it uses a thoroughly inadequate “model” of slave socialization, and that it contains frequent and important errors of all kinds in its use of quantitative (not to mention “literary”) evidence essential to its major arguments. T/C cannot be taken seriously as social history.

T/C, however, is a serious work, and its authors are well-established and highly able economic historians. It is a work that draws heavily upon numerical evidence, and volume two entitled *Evidence and Methods—A Supplement* is filled with algebraic equations, the results of computer runs, and arguments that only “specialists” seemingly can confront. F+E insist that they manage “a more complete body of information on the operation of the slave system than has been available to anyone interested in the subject either during the ante bellum period or since then.” Readers learn that an “enormous body of evidence” is “the source of new discoveries.” The scope of the research project is awesome. It includes data from five other cliometricians with specialized skills, eleven resident University of Chicago graduate students, still other graduate students (perhaps as many as fifteen and some heading smaller “data collection” teams), twenty or twenty-one persons (including this writer) who read an entire earlier draft, and another ninety-three persons—many among these distinguished economic historians and well-known and productive historians of slavery—who read earlier portions of the unpublished work.⁴ Much of the data reported in T/C, moreover, have benefited from the modern computer. “We were able to do in five minutes, for \$40,” said Fogel to an admiring *Wall Street Journal* writer, “what would have taken 2,000 man days of work.”⁵

²See especially Robert Fogel and Stanley Engerman, “The Economics of Slavery,” in *The Reinterpretation of American Economic History* (New York, 1971), pp. 311-341. Much that fills the pages in volume one of *Time on the Cross* and deals with the slave economy is found in this essay. The reader should compare this essay with chapters three and six in the first volume of *Time on the Cross*.

³See especially Paul David and Peter Temin, “Slavery: The Progressive Institution,” *Journal of Economic History*, (September 1974), “Time on the Cross,” *New York Review of Books*, 19 September 1974, 38-42; Martin Duberman, Review of T/C, *Village Voice*, 18 July 1974, pp. 25-33; Allan Lichtman, Review of T/C, *New Republic*, 6-13 July 1974, pp. 22-24; John Blassingame, Review of T/C, *Atlantic Monthly*, Aug. 1974, pp. 78-82.

⁴T/C, I, pp. 2-12, pp. 265-270.

⁵*Wall Street Journal*, 28 March 1974.

Early reviewers, distinguished historians among them, got the message. In cautious reviews, David Brion Davis and C. Vann Woodward used similar metaphors. Davis noted that F+E “speak casually of their legions of research assistants, of their mobile SAM computers, of their electronic weaponry, of their occupation of every hidden site.” “We are told,” Davis went on, “that we are encircled, cut off, and cannot fight unless we have weapon-systems equal to those of the Cliometricians.” Woodward found that “even in the ‘non-technical’ volume of findings the rattle of electronic equipment is heard off stage and the reader is coerced by references to . . . inconceivable mountains of statistical data.” F+E themselves demonstrate a fierce capacity for combat in a tortuous if tasteless analysis of Kenneth Stampp’s *The Peculiar Institution*. “They nail Kenneth Stampp to the cross,” said Davis, “taunting him for his statistical errors [and] his nonscientific methodology.” Woodward felt T/C “an all-out assault on American slavery historians,” “a ruthless scourging of traditional historians of slavery, whether of the left or the right, for their slipshod and unscientific ways,” including “the merciless clobbering of a few unfortunate victims.” Reviewers less qualified than Davis and Woodward drove home a different point, one meant as a warning to “traditional” historians. T/C, said the *New York Times Book Review*, “is a different kind of history; its conclusions are based on reams of fresh data and sophisticated mathematical techniques borrowed from economics. . . . It just won’t wash to feign moral outrage about quantitative whippings or about the number of slave women in brothels.” The same point was made in *Time Magazine*. “Generally moderate,” F+E were “quite merciless when dealing with what they regard as the fumbling ignorance of Stampp, Elkins, and Phillips on the subject of economics and statistics.” “The message,” this same reviewer went on, “is perfectly clear. Historians who do not have these tools could grope for another hundred years in subjective confusion and never be able to evaluate or rebut the work of the cliometricians.” The intelligent layman interested in Afro-American enslavement was even less fortunate. How could it be otherwise if the *Times Literary Supplement* warned potential T/C readers that “many of its graphs, equations, and symbols will be beyond the comprehension of most historians?”⁶

Computers are helpful and so, no doubt, are complex mathematical techniques, but they are not prerequisites for understanding T/C, deal-

⁶David Brion Davis, “Slavery and the Post-World War Two Historiography,” *Daedalus* (Spring 1974), pp. 1-16; C. Vann Woodward, “The Jolly Institution,” *New York Review of Books*, 2 May 1974, pp. 2-6; Peter Passell, Review of T/C, *New York Times Book Review*, 28 April 1974, 4; Timothy Foote, Review of T/C, *Time*, 17 June 1974, pp. 98-100.

ing with its central arguments and examining its many uses and abuses of quantitative and literary evidence. The intelligent reader does not need to know the difference between a chi-square test and a multiple-regression analysis to learn that ordinary enslaved Afro-Americans did not conform to the patterns of beliefs and behavior emphasized in T/C.

A. AN OVERVIEW OF T/C.

The Central Theme in T/C: "Black Achievement Under Adversity."

Just as southern history has its "central theme," so, too, does T/C in dealing with the beliefs and behavior of enslaved Afro-Americans; that is, in dealing with their social history. Its major purpose is to chronicle anew "the record of black achievement under adversity." *Time Magazine's* reviewer smartly noted that T/C describes "plantations as businesses administered in ways that suggest both a Victorian family and a paternalistic corporation eager to encourage worker morale in the interest of higher profits."⁷ This reviewer failed only to mention that the eagerness of "most" slaves to work hard and diligently, according to F+E, matched the eagerness of "most" slaveowners to get them to do so. In a review appropriately entitled "Capitalist Masters, Bourgeois Slaves," the economic historians Paul David and Peter Temin splendidly summarized the central theme of T/C:

The major part of "the record of black achievement under adversity" which this book claims to have revealed consists simply in the alleged ability of black slaves to fully internalize the Protestant work ethic and the *mores* of Victorian family life, to assimilate and function within a market-oriented society, and—even though largely confined to the lowest levels of the socio-economic hierarchy—to successfully strive to make a profit for the enterprises which depended upon their labor. . . .

It is not merely that slavery was "profitable." F+E are not the first to argue that point, and few historians would dispute it. It is rather that "the way the slaves . . . responded to the *positive* incentives their masters devised for maintaining nuclear families, caring for their young, and working diligently was responsible for the smooth and profitable operation of the system of slavery in the ante bellum South."

David and Temin go on:

This is seen by Fogel and Engerman as the main "achievement" of the American Negro people in slavery. This is the view that distinguishes their book from every other major study of slavery published during the past three decades: Fogel and Engerman not only reject the Sambo image, but also the conception that it was appropriate for the slaves to have resisted their bondage.⁸

⁷ Foote Review of T/C, *Time*, 17 June 1974, pp. 98-100.

⁸ David and Temin, "Capitalist Masters, Bourgeois Slaves, *Journal of Interdisciplinary History*, point out that "economic man"—either as slave or owner—makes no

So goes the main thrust of T/C. A "mass" of evidence—some of it old and some of it new, and some of it quantitative and some of it literary—seeks to show how well the slaves *learned* from their owners about how to labor efficiently and productively (the "Protestant Work Ethic") and about how to live in normal nineteenth century families (the mores of "Victorian" family life). An implicit *model of slave socialization* permeates the pages of T/C.

T/C and Models of Slave Socialization: How Slaves Learned and What They Learned.

We deal first with the model of slave socialization in T/C. It is the *traditional model*, and it is an erroneous model that has greatly limited understanding of enslaved Afro-Americans and their beliefs and behavior. Put simply, F+E argue that enslavement successfully transformed the Afro-American into a hard-working, productive, and compliant specialized laborer. Planter-sponsored stimuli worked this transformation. That process—one in which generations of enslaved Afro-Americans absorbed and internalized the virtues identified with the "Protestant Work Ethic" and the "Victorian" family—had its origins in the policies and practices of slave owners anxious to maximize profits. This model mixes two processes together: *how slaves learned* and *what slaves learned*. It is erroneous for two reasons.

First of all, it defines slave socialization by asking simply *what* enslavement *did* to Africans and to several generations of enslaved Afro-Americans. The methods used to answer this essential and important question are sometimes new and so is much of the data. But the question asked is not new. It is the same question asked by most historians and social scientists for three-quarters of a century. It does not differ from the question asked by such diverse students of slavery

choices in T/C. The "market" determines his behavior:

. . . slaveholders appear as indistinguishable from pure economic men. If they act benevolently, even compassionately towards their human chattel, it is not out of patriarchal commitment but because the workings of capitalism in a highly competitive industry happened to make such behavior most profitable, and because "the market" would have punished those owners who indulged in or failed to prevent the abusive treatment of their slaves.

The enslaved had just as little choice:

Fogel and Engerman . . . do not stop with the bourgeoisification of the southern slavocracy. For they hold that the slaves, too, learned to respond to a range of economic incentives that was created for them, seeking extra income, leisure, and occupational advance through cooperation and identification with the economic interests of their masters. In the underlying motivation of its members, then, the black slave community portrayed by Fogel and Engerman is thoroughly bourgeois, as much a part of capitalist society as was the white slave-owning class.

as U. B. Phillips, Stanley Elkins, and E. Franklin Frazier. Slaves learned only because of what was done to them. But just so much and no more can be learned *about the enslaved by the historian* asking only this question. The quantity and the quality of the evidence examined hardly matter. The social history of the enslaved Afro-American still remains heavily shrouded by the shadow of U. B. Phillips, the influential early twentieth century historian. That shadow was cast by more than this historian's narrow racial assumptions. It has just as much to do with the larger "analytic" model Phillips worked with to "explain" how enslavement affected Africans and their many Afro-American descendants. Freed from its racist assumptions, that "model" still retains a powerful and wholly negative influence on the conceptualization of the Afro-American historical experience prior to the general emancipation. T/C is not free of that early twentieth century "model." It is in no way a racist work. That should be clear at the start. But in seeking to explain "typical" slave beliefs and behavior, its authors cling tenaciously to the early twentieth century belief that enslaved Afro-Americans only "learned" from their owners. Phillips, of course, believed that slave culture (the source of slave belief and behavior) was "imitative." F+E reject that crude formulation. But the enslaved still learn only from their owners. Slave socialization in T/C involves no more than slave conformity to master-sponsored external stimuli.

Secondly, the model of slave socialization in T/C is *static* and, therefore, *ahistorical*. That, too, is a common flaw in writing the history of enslaved Afro-Americans, shared, for example, by F+E with such adversaries as Elkins, Kenneth Stampp, and Eugene Genovese. In T/C, the prices of cotton and slaves change over time, but the beliefs and behavior of enslaved Afro-Americans remain constant. The enslaved do not experience history. "Time" appears only in the book's title. Numbers and especially "averages" which serve as critical indices of slave belief and behavior are timeless in T/C. When the reader learns, for example, that the average age of a slave mother at the birth of a first surviving child was "22.5," there is no indication that F+E are dealing with enslaved women in 1720, 1770, 1810, or "over time."

The central flaw in most historical works on the enslaved Afro-American is a shared static model of how slaves learned. T/C does not differ from these works. It does no more than reinforce that flawed model of slave socialization. What gives T/C its novelty are its truly amazing "findings" about what slaves learned. In the pages which follow, we examine these "findings" as they affect F+E's explanation of slave beliefs and behavior. But a flawed model of slave socialization can greatly obscure and even distort accurate "findings" that hint at patterns of slave belief and behavior. A single example suffices to illustrate this point: "The average age at which slave women married

was twenty.” Three questions, among others, need to be answered about this statement. First, is this an *accurate finding*? Second, if accurate, *why* did most slave women marry at age 20? And third, if accurate, what does this regularity in behavior tell us about slave beliefs and slave culture? A static model which assumes that slaves learned only from their owners promises to offer inaccurate answers to the second and third questions. It cannot be otherwise. But, as we shall see, the flaws in T/C have less to do with the second and third questions than with the first question. It is the findings in T/C that are so frequently in error and especially the quantitative data essential to the following central themes in this study: owner-sponsored negative labor incentives, owner-sponsored positive labor incentives, slave urban and rural occupational distributions, slave mobility, owner attitudes and behavior toward slave marriage and the slave family, the effects of migration and sale on the slave family and slave marriage, and slave sexual behavior. On all of these important matters, the findings in T/C are either disappointingly slight and unconvincing, based upon flawed assumptions about slave culture and slave society, based upon the misuse of important quantitative data, or derived from inferences and estimates that are the result of a misreading of conventional scholarship.

The Essential Errors in T/C About What Enslaved Afro-Americans Learned.

Listed below are some of the major errors in T/C:

Negative Labor Incentives.

1. F+E do not deny that slave owners punished slaves but use a single piece of evidence—a list of whippings on the Bennet H. Barrow Louisiana cotton plantation in 1840-1841—to argue that historians have greatly exaggerated the use of negative labor incentives such as whipping to spur slaves to work harder. That is done by computing the least significant measure of whipping.
2. The whipping list, together with other documents left by Barrow, tells exactly the opposite of what F+E “find.” These tell that on an average a slave was whipped every 4.6 days and that most slaves were whipped for inefficient labor, that the most productive cotton pickers were also the most disorderly and the most frequently whipped slaves, that those whipped had not internalized the Protestant Work Ethic, and that F+E have misrepresented Barrow’s disgust with the labor of his slaves.

Positive Labor Incentives.

1. The evidence offered by F+E to indicate patterns of short-run and intermediate rewards meant to get slaves to work harder

shows no patterns.

2. The reconstruction of urban and rural slave occupational structures in "about 1850" convinces F+E that between 25 and 30 percent of rural slave males were neither field hands nor common laborers, and that urban slaves had even greater opportunities. Slaves worked hard and internalized the Protestant Work Ethic because of the opportunity in the "long run" to climb the slave occupational ladder and become artisans, drivers, and overseers.
3. Serious errors in overestimating the percentage of slaves with urban and rural skills together with an entirely inappropriate comparison between the occupations of all slave males in 1850 and all males in 1870 invalidate this argument.
4. The percentage of skilled and "managerial" slaves in southern cities is greatly exaggerated by the use of incomplete data on the ante bellum southern white and free black urban occupational structure, by a misreading of Robert Starobin's study of industrial slavery, and especially by excessive reliance on a wholly inaccurate 1848 Charleston, South Carolina, census. It is impossible that "44" percent of urban artisans were Blacks in 1860.
5. The percentage of rural slaves who were neither common laborers nor field hands is also exaggerated because the so-called "conventional ratio" of slave drivers to slaves is based upon a misreading of other historians. The estimated percentage of slave overseers is based upon erroneous assumptions, and the estimated percentage of rural slave artisans is based upon a misreading of probate records. F+E estimate that 11.9 percent of rural slaves were artisans, but the occupations of 20,000 Union Army Kentucky black soldiers fix that percentage at 1.6 percent. When corrections are made, it turns out that about at least 85 percent of rural male slaves were either common laborers or field hands, a percentage change that greatly lessens the opportunities for slave advancement or "achievement."
6. The inflation of slave skills causes F+E to argue that a sharp drop in black skills followed emancipation. "Racism," not slavery, is blamed for the low-skill level among emancipated blacks and their children. That is an inaccurate explanation because slave skills were far less important than suggested in T/C.
7. The discussion of slave mobility in T/C is erroneous because mobility cannot be studied at a fixed moment in time. It can only be studied over time, and that is not done in T/C. It is possible that such a study will show that slaves in 1860 had a lower occupational status than their slave grandfathers in 1790.

Slave Marriage, the Slave Family, and Slave Sales.

1. T/C contains mostly data dealing with slave marriage (not the slave family) but regularly and erroneously uses data about "stable" slave marriages to describe "stable" slave families. The authors fail to distinguish between a slave marriage and a slave family in their analysis.
2. The "finding" that "most slave sales were either of whole families or of individuals who were at an age when it would have been normal for them to have left the family is not a finding at all. When an older child was separated involuntarily from its slave parents or siblings by sale, hire, gift transfer, or estate division, that separation involved the breakup of a slave family. And there was nothing "normal" about such an involuntary separation. Failure to examine how often children of any age were separated from immediate slave families flaws by default all arguments about the typical "stable slave nuclear family."
3. There is no positive evidence in T/C that slaves lived in stable nuclear families. There is only negative evidence: an apparent low incidence of sales that broke up slave marriages.
4. Two arguments minimize the effects of inter-regional migration and sale on the "stability" of the slave family. Both are flawed. The belief that migration from the Upper to the Lower South with the owner did not break up immediate slave families is based upon the assumption that migrating owners owned all members of an immediate family. But it was common in the Upper South for a slave husband and wife to have separate owners. Migration without sale therefore broke up many slave families.
5. A second argument based upon the New Orleans slave sale invoices show infrequent marital breakups among women sold in the New Orleans slave market only because of the way in which F+E define a "slave marriage." A comparison of the percentage of child-bearing women in the New Orleans slave market with child-bearing women in the slave-selling states is invalid because F+E construct familial slave relationships from the manuscript slave census. That cannot be done accurately.
6. F+E make much use of William Calderhead's excellent study of slave sales in eight Maryland counties between 1830 and 1840, the only available study of slave sales in a particular population. F+E fail to point out that if Calderhead's data are typical for the entire South between 1820 and 1860 a slave was sold every 3.6 minutes and about 2,000,000 slaves were sold between 1820 and 1860. Since most slaves lived in families, this data alone show how

erroneous it is to say that slaves lived in "stable" families. (Unless, of course, most slaves sold did not live in families.)

7. Many essential "propositions" in T/C about the slave family are based upon scattered examples, not systematic evidence. These include arguments that slave owners "promoted" stable slave families, that planters encouraged fertility by "promoting family formation," that slaves "apparently abandoned African family forms," and that "wives tended to play a much stronger role in black than in white families."
8. The discussion of the slave family is marred by the failure to make such essential distinctions as to the difference between a slave family and a slave household, by the absence of any discussion of slave kinship groupings, and by the failure to define words such as "nuclear."

Slave Marital and Sexual Behavior.

1. The "average" age of slave women and men at marriage is fixed at "20" for women and "24" for men. F+E suggest that such information comes from probate records. It cannot.
2. The striking argument that slave sexual mores were "prudish" is based upon a single source: scattered and unidentified probate records which fix the "average" age of slave women at the birth of a first surviving child in the household at "22.5" and show that about "40.0%" of slave mothers had a first surviving child when not yet twenty years old.
3. A vast amount of other quantitative evidence drawn from the 1880 manuscript federal census fixes the "average" age of former slave women at the birth of a first surviving child at between 18.0 and 18.9, shows that between 8 and 13 percent of former slave women had a first child prior to a fifteenth birthday, and that about 60.0 percent had a first child prior to a twentieth birthday.
4. If the 1880 data are correct and if what F+E report is accurate, it follows that one of the great consequences of the general emancipation was a significant drop in the age at which southern black women began having intercourse.
5. But F+E err in their use of probate records. The historian cannot learn from a probate record whether the oldest child in a household is the first-born child. There is an upward bias in all probate records dealing with slave mothers. Plantation birth registers, not surprisingly, show an age of the mother at the birth of a first child that is consistent with the 1880 data.
6. The "age" found in the probate records convinces F+E that prenuptial intercourse was rare among enslaved Afro-Americans. But the age of mothers at the birth of a first child was much lower

than F+E realize, and a vast quantity of evidence shows that prenuptial intercourse was common among the enslaved. Such behavior, of course, is not evidence of promiscuity.

7. Evidence in T/C that a narrow age spread separated most slave husbands and wives also is contradicted by a vast quantity of contemporary data, posing additional questions about the validity of the sources used by F+E.
8. The argument that slave prostitution did not exist is based upon a misrepresentation of what the manuscript census schedules reveal and upon the creation of a non-fact.

The Quantity and Quality of Evidence in T/C.

In the pages that follow, a variety of questions shall be asked about the evidence and the arguments in T/C dealing with what slaves learned. These questions are appropriate to all historical works and to all sorts of historical evidence. Have the authors asked the right question? Has the question asked been answered properly? Have the right sources been used? Have the sources used been properly studied? Are there conceptual errors in the use of the sources? Are there errors in what quantitative historians call "executorial computations"? Has the work of other historians on similar subjects been properly used? Have the arguments of other historians on similar subjects been properly summarized? How do the new "findings" measure against the published findings of other historians and against other sources not examined by the author? What is the relationship between "hard" empirical findings and speculative "inferences" and "estimates"?

It is useful, furthermore, to indicate at the start some of the overall limitations in the evidence presented in T/C. The evidence, first of all, is quite uneven in quantity. Thirty-eight pages in volume two (pp. 87 to 125), for example, present supplementary evidence on the arguments in chapter four, "The Anatomy of Exploitation." That single chapter discusses at least fifteen different subjects including the slave diet, slave shelter, slave clothing, slave medical care, slave mortality, slave morbidity, inter-racial and inter-status sexual contacts, slave sexual behavior, slave marital patterns, the slave family, slave punishments, short-run slave rewards, intermediate slave rewards, long-term slave rewards, and an estimated rate of slave "expropriation." The evidence offered on these diverse matters is greatly skewed. Three-fifths of the evidence in these thirty-eight pages discusses either the slave diet or a complicated measure of the rate of "miscegenation." Secondly, much of volume two ("evidence and methods") is filled with references to "sources" that are never carefully described. Manuscript plantation records and probate records, for example, are frequently cited, but the name of a single plantation record or probate record examined by F+E

is never recorded in the text of this work. Thirdly, and perhaps most importantly, there are assumptions that slip regularly into arguments otherwise surrounded by "averages" and "percentages." F+E explain at the beginning of volume two:

In the text we attempted to weave these new findings into a fairly comprehensive reinterpretation of the nature of the slave economy. To do so we were obliged to invoke assumptions which, though plausible, cannot be verified at present, and to rely on additional evidence too fragmentary to be subject to systematic statistical tests.⁹

That is an honest admission of the weakness of much of the argument and evidence in T/C. It shall be seen in the pages that follow that some essential assumptions are not at all plausible and are, in fact, contradicted by vast quantities of evidence. It shall also be seen that fragmentary evidence appears and again in explanations of the beliefs and behavior of both the owners of slaves and the enslaved themselves.

T/C is a very disappointing book. Although many monographs and specialized studies have been written about the enslaved Afro-American, an entire range of critical subjects—some inadequately studied and others still unstudied—need fresh empirical examination. New work is needed on such subjects as the slave family and kinship system, slave demography, slave religion, slave work habits, the sale of slaves, the intimate texture of everyday slave life, and, most importantly, the processes by which an adaptive Afro-American slave culture emerged in the eighteenth and nineteenth centuries. New methodologies (some of them "quantitative") have greatly advanced the writing of American social history in the past two decades but have not been used widely to study enslaved Afro-Americans. T/C is the first major study using such methods and relying primarily on quantitative data. Its authors celebrate the value of such methods and such data but do not use that data carefully. There is a danger, therefore, that their many errors will turn students of the Afro-American experience away from such techniques. That would be unfortunate because such techniques are rather useful tools in describing regularities in social behavior and thereby allowing the social historian to begin reconstructing neglected or misinterpreted aspects of slave culture and slave beliefs.

B. ENSLAVED AFRO-AMERICANS AND THE "PROTESTANT WORK ETHIC."

We consider first the most important new "finding" in T/C: the conclusion that southern slave farms and plantations were much

⁹T/C, II, p. 4.

“more efficient” than southern free farms and northern farms because of the “quality of black labor.” Summing up what they consider “some of the principal corrections of the traditional slave economy,” F+E assert: “The typical slave field hand was not lazy, inept, and unproductive. On an average he was harder-working and more efficient than his white counterpart.”¹⁰ All earlier historians of slavery—writers as different as U. B. Phillips, Stanley Elkins, and Kenneth Stampp—are severely criticized for failing to understand the “fact” that most *ordinary* slave workers had internalized what F+E call the “Protestant Work Ethic.” This proposition about the “quality of black labor” is much, much more important to the general theme of T/C than F+E’s discussion of slave “material conditions” such as food, clothing, shelter, and medical care and their discussion of “the slave family.” F+E explain:

. . . (M)aterial treatment is not the issue on which the economic analysis of slavery turns. Indeed the resolution of none of the other issues depends on the resolution of the question of material treatment. Slavery could have been profitable, economically viable, highly efficient, and the southern economy could have been rapidly growing under either a cruel or a mild regime.¹¹

It was instead the productive labor of slaves that “explains” the relative efficiency of the plantation system.

Efficient Slave Labor Is Not the Same as an Efficient Plantation.

The authors of T/C do much more than describe the relative efficiency of the ante bellum plantation system. They attribute it to the “quality of black labor” and, therefore, are describing the social character of the enslaved themselves. David and Temin put it well: Superior “efficiency” is . . . said to have characterized the work performance of the individual slaves, as well as the class of production organizations that utilized them.

While they are analytically distinct, it is important to notice that the two types of statements involving comparisons of efficiency are *not empirically unconnected*. Fogel and Engerman have not developed *any independent quantitative support for their propositions regarding the comparative personal efficiencies of the typical slave and free worker* in agriculture. Instead, they have arrived at these conclusions essentially by the process of *eliminating some other conceivable explanations* for the measured factor productivity advantage of slave-using agriculture—such as differential economies of scale, technical knowledge [,] or managerial ability. . . (Italics added)¹²

Econometricians are examining with care the measures by which F+E figure that “slave farms” were “X” percent more efficient than free

¹⁰T/C, I, pp. 4-5.

¹¹T/C, II, pp. 219-220.

¹²David and Temin, “Slavery: The Progressive Institution,” as cited,

southern or northern farms. David and Temin have begun that discussion and have suggested a number of biased estimates and erroneous assumptions that greatly exaggerate the “productivity” of slave farms as opposed to free farms.¹³ The following pages examine in detail the evidence used by F+E to reveal the “comparative personal efficiencies of the typical slave . . . worker in agriculture” but do not discuss the relative efficiency of productive organizations worked with slave labor. David and Temin’s point that the “two types of statements involving comparisons of efficiency are not empirically unconnected” is important, but they neglect the critical quantitative data that F+E have assembled on the rural and urban slave occupational structures, the only new quantitative data meant to explain why slaves worked so hard and so well.

The Transformation of Slave Work Habits and the Protestant Work Ethic.

F+E’s most crucial arguments about the “quality of slave labor” and much of their least convincing evidence are found in a brief portion of Chapter Four entitled “Punishments, Rewards, and Expropriations.” A short but controversial section, it has attracted the attention of nearly all reviewers and contains data essential to some of F+E’s most startling conclusions.¹⁴ It also uses evidence in ways that strikingly reveal the utter inadequacy of the old-fashioned “model” of slave society that tarnishes T/C. David and Temin vigorously dispute the “low” rate of “expropriation” estimated in F+E, insisting that inaccurate estimates indicate a bias.¹⁵ The focus here is different. It is on F+E’s arguments and use of evidence to show that enslaved Afro-Americans worked hard and diligently because they wanted to and because profit-maximizing owners skillfully mixed a few punishments with many rewards to encourage productive slave labor. We examine “punishments” and “rewards”: the positive and negative incentives used by slave owners, especially planters, to improve slave labor and to increase productivity.¹⁶ F+E do not deny that slave owners used physical punishment but greatly minimize its significance relative to the prevalence of positive labor incentives. The carrot counted more than the stick:

While whipping was an integral part of the system of punishment and rewards, it was not the totality of the system. What planters wanted was not sullen and discontented slaves who did just enough to keep from getting whipped. They

¹³*Ibid.*

¹⁴T/C, I, pp. 236-246.

¹⁵David and Temin, “Slavery: The Progressive Institution,” as cited,

¹⁶T/C, I, pp. 144-153, II, pp. 116-119.

wanted devoted, hard-working, responsible slaves who identified their fortunes with the fortunes of their masters. Planters sought to imbue slaves with a "Protestant" work ethic and to transform that ethic from a state of mind into a high level of production. . . . Such an attitude could not be beaten into slaves. It had to be elicited.¹⁷

Convinced that a system of positive planter-sponsored labor incentives existed, F+E also insist that most slaves responded positively to the rewards offered them. The very last paragraph in T/C emphasizes this point. A high level of slave productivity resulted in the production of cotton, tobacco, sugar, and rice. But the "spikes or racism"—that is, "myths"—hid this "fact" from contemporaries and later historians. Racist beliefs turned high slave "achievers" into "Uncle Toms."¹⁸ The biased beliefs of anti-slavery advocates and so-called "neo-abolitionist" historians kept hidden from the American people and especially from black Americans truths about how the ancestors of twentieth century Afro-Americans had been transformed as slaves into nineteenth-century "economic" men and women. Sambo really was Horatio Alger with a black skin.

Evidence supporting such a transformation is not found in T/C. If such a transformation actually occurred, *that* would be a social fact of great importance in understanding the behavior and beliefs of enslaved Afro-Americans and of their emancipated descendants. But most of the evidence in T/C about this important conclusion is not impressive. Much of it is circumstantial; none of it is substantial; most of it is quite traditional; hardly any of it comes from new sources, and, when used, such sources are often imprecisely and sometimes wildly exaggerated. To transform means to "change something to a different form," a change "in appearance, condition, nature, or character." Transformation, therefore, is a social process and has to occur over time. Something happens to someone. Slaves are made into "efficient" workers. The F+E "model," however, is static and ahistorical. F+E never consider who was being transformed. Because there is no discussion of who the slaves were and how well they worked at the beginning of this social process, it is hardly possible to describe a "transformation." Instead of that kind of needed and useful analysis, important evidence—especially that dealing with "punishments," "rewards," and "mobility"—is so badly used as to cast considerable and disturbing doubt upon the entire argument.

Scant Evidence on Negative Labor Incentives (or Slave Punishments).

Punishments, or negative labor incentives, are treated with a single

¹⁷T/C, I, p. 147.

¹⁸T/C, I, pp. 263-264.

and greatly misinterpreted “quantitative” example, Appendix C (“Misconduct and Punishments: 1840-1841”) in Edwin Adams Davis, ed., *Plantation Life in the Florida Parishes of Louisiana, 1836-1846, as Reflected in the Diary of Bennet H. Barrow*.¹⁹ The historian Davis apparently gathered instances of slave misconduct and punishment from the cotton planter Barrow’s diary.²⁰ The Davis study contains one of the few easily accessible “quantitative” sources used by F+E. “Cliometric” theory is not needed to examine it. Analysis does not depend upon computer technology. Ordinary readers of T/C should examine these data, and draw their own conclusions as to how accurately they have been used. My own analysis follows.

The Barrow punishment record serves to create a pseudostatistic that diminishes the frequency of slave whippings. This is the only evidence dealing with slave punishment; so it serves to trivialize planter-sponsored negative labor incentives. After a brief paragraph which tells that “whipping could be either a mild or a severe punishment” (an indisputable but hardly original generalization), a critical four sentence paragraph based entirely on the Davis appendix follows: Reliable data on the frequency of whipping is extremely sparse. The only systematic record of whipping now available for an extended period comes from the diary of Bennet Barrow, a Louisiana planter who believed that to spare the rod was to spoil the slave. His plantation numbered about 200 slaves, of whom about 120 were in the labor force. The record shows that over the

FIGURE 40
The Distribution of Whippings on the Bennet H. Barrow Plantation during a Two-Year Period Beginning in December, 1840

Whippings Per Hand	Estimated Per Cent Whipped
0	45%
1	18%
2	14%
3	7%
4	11%
5	3%
6	1%
7	1%

¹⁹New York, 1943, pp. 431-440.
²⁰The entire volume includes several other useful appendices, such as a brief but illuminating sketch of Barrow and his planter peers and Barrow’s diary entries from 1836 to 1846, pp. 72-385.

course of two years a total of 160 whippings were administered, an average of 0.7 whippings per hand per year. About half the hands were not whipped at all during the year.²¹

Figure 40—entitled “The Distribution of Whippings on the Bennet H. Barrow Plantation During a Two-Year Period Beginning in December, 1840”—which accompanies these few sentences merely illustrates with a bar chart what the written word reports.

The two brief paragraphs which follow do not enlarge upon these “findings” but examine whipping generally and offer some “comparative” observations.²² The datum drawn from the Barrow “diary,” then, is the single item of “hard” data dealing with negative labor incentives.

*How the Historian Measures the Frequency of Slave Whippings,
Figure 40.*

The sentence—“The record shows that over the course of two years a total of 160 whippings were administered, an average of 0.7 whippings per hand per year”—is examined first. Several questions come to mind. Is “0.7” a useful “average”? Have the Barrow diary data and the appendices which accompany it been properly used? Have the right historical questions been asked of that data? It is assumed for the moment that Barrow owned “200” slaves of whom about “120” were in the labor force. (It shall be seen below that each number—“200” and “120”—is wrong.) To report “an average of 0.7 whippings per hand per year” using these numbers is accurate. That is not, however, the significant average. The wrong question has been asked. The logic producing this average is socially flawed along with the inferences suggested by it. The same logic could just as easily calculate the average number of whippings per hand per week (0.013). It is known, for example, that “on average” 135 blacks were lynched every year between 1889 and 1899.²³ How does one assess that average? Assume that six million Blacks lived in the United States in 1889, 135 of whom were lynched. Is it useful to learn that “the record shows an average of 0.002 lynchings per Black per year so that about 99.998 percent of Blacks were not lynched in 1889?” An accurate average, that is a banal statistic. Lynching as a form of social control cannot be evaluated by dividing the number of Blacks (or whites) lynched into the number of

²¹T/C, I, p. 145.

²²A few sentences in Volume two p. 116 tell readers that “an adequate social history of whipping remains to be written” and that scattered historical writings indicate the persistence (despite a declining frequency) of whippings as a means of disciplining “members of the laboring classes” into the mid-nineteenth century in England, Russia, and even the American North. But what the British historian E. H. Carr calls the “economic whip” steadily replaced physical punishment in developing capitalist countries.

²³C. Vann Woodward, *Origins of the New South, 1877-1913* (1951), pp. 351-352.

living Blacks (or whites). The absolute number of lynchings in a given time period and whether that number rose or fell later in time are important numbers. They measure the changing frequency with which this particular instrument of social violence was used. It is then possible to study its relative significance. The same is true with slave whippings. Southern law permitted slave owners to punish their chattel, and most historians agree that whipping them served as the most common form of physical punishment, figuring as a central device in imposing order over troublesome slaves and in revealing the source of authority in a slave society. The essential statistic, therefore, is not the “average [number] of whippings per hand per year.”** Whether by the week or the year, such an “average” does not measure the utility of the whip as an instrument of social and economic discipline. It is much more relevant to know how often the whip was used: on Plantation X with Y slaves in Z years, how frequently was the whip used? That information is available in the Davis volume. In 1840-1841, Barrow’s slaves were whipped 160 times. A slave—“on average”—was whipped every 4.56 days. Three slaves were whipped every two weeks. Among them, sixty (37.5 percent) were females. A male was whipped once a week, and a female once every twelve days. Are these averages “small” or “large”? That depends. And it depends upon much more than if one is either a “neoabolitionist” or a “quantitative” historian. These are quite high averages and for good reason. If whipping is viewed primarily as an instrument of labor discipline and not as the mere exercise of arbitrary power (or “cruelty”), whipping three slaves every two weeks means that this instrument of physical discipline had an adequate social visibility among the enslaved. Slave men and women were whipped frequently enough—whatever the size of the unit of ownership—to reveal to them (and to us) that whipping regularly served Barrow as a negative instrument of labor discipline. Imagine reading the following argument:

While whipping was an integral part of the system of punishment and rewards it was not the totality of the system. What planters wanted was not sullen and discontented slaves who did just enough to keep from getting whipped. They wanted devoted, hard-working, responsible slaves who identified their fortunes with the fortunes of their masters. Planters sought to imbue slaves with a “Protestant” work ethic and to transform that ethic from a state of mind into a high level of production. *Reliable data on the frequency of whipping is extremely scarce. The only systematic record of whipping now available comes*

**Using the same data, interestingly, Eugene D. Genovese makes the same mistake. “Masters,” he writes, “who were not slaves to their passions tried to hold corporal punishment to a minimum. The harsh Bennet H. Barrow of Louisiana used his whip more than most: his slaves averaged one whipping a month and many only once a year.” (*Roll Jordan Roll* [1974], 64.)

from the diary of Bennet Barrow, a Louisiana planter who believed that to spare the rod was to spoil the slave. Over the course of two years, Barrow whipped a slave every 4.56 days. Women were whipped less frequently than men. On average, a male slave was whipped every 7.3 days and a female slave every 12.2 days. [The "Protestant" work ethic] . . . could not be beaten into slaves. It had to be elicited.

A school boy would not take such an argument based on this evidence seriously. There is a *real* social difference between a slave being whipped every 4.56 days and "an average of 0.7 whippings per hand per year." And it rests on more than a mastery of long division.

Constructing A "Whipping Table": Numerical Errors in Figure 40.

So far it has been pointed out that F+E asked the wrong question. That error is common among historians. But F+E also have inaccurately used the Barrow diary and the accompanying appendices. "His [Barrow's] plantation," they write, "numbered about 200 slaves, of whom about 120 were in the labor force." Both numbers are wrong. Whipping data are available for "1840-1841," but the Davis volume, including the diary itself, does not tell how many slaves Barrow owned in "1840-1841." An "Inventory of the Estate of Bennet H. Barrow," printed as an appendix, gives by name and age the slaves owned then. About 200 men, women, and children are listed. But Barrow died in 1854, fourteen years after the recorded whippings, and it appears that F+E assume that Barrow owned "about 200 slaves" in 1840-1841. No data in the Davis volume warrant that assumption. Additional appendices—birth (1835-1846) and death (1831-1845) lists (pp. 427-431)—show that slightly more than twice as many slaves were born as died in these years. Since Barrow apparently sold few slaves, these records suggest that he owned far fewer than "about 200" slaves in 1840-1841. F+E, therefore, measured the actual number of recorded whippings against a total slave population far in excess of its real size. (When F+E tell us that "about half the hands were not whipped at all during this period [1840-1841]," that estimate is based upon an exaggerated estimate of the Barrow slave population.) As a result, the frequency with which *individual* slaves were whipped is greatly underestimated.

Barrow's Diary Entries Compared to the "Whipping" List.

The Barrow Diary entries are just as valuable as the Davis whipping list.²⁴ There is some question whether the diary is complete.²⁵ The

²⁴"The only systematic record of whipping now available for an extended period," write F+E, "comes from the diary of Bennett Barrow. . . ." The sentence more properly should read: "The only systematic record of whipping available to us for an extended period. . . ." F+E have not systematically searched plantation records for similar evidence. That much is clear from their list of sources. No one, to my knowledge,

same volume also includes several valuable appendices, and a 67-page essay on Barrow, his family, and his business-plantation-and-social doings. Written in the Phillips tradition, the essay has some of the severe shortcomings characteristic of that genre but still contains much useful information. F+E rely heavily on the essay and Davis's list "Misconduct and Punishments: 1840-1841;" but for an unexplained reason none of the rich details describing plantation management and especially slave disciplining that stud the ten-year diary found their way into the pages of T/C. F+E possibly felt that this material was irrelevant to T/C's central themes. Extracts from the diary follow:²⁶

1836

Dec. 26 House Jerry & Israel chained during Christmas Jerry for general bad conduct—for a year and better—Israel bad conduct during cotton picking season

1837

Sept. 4 . . . had a general Whipping frolic

Oct. 2 More Whiping to do this Fall than altogether in three years owing to my D mean Overseer

Dec. 31 ran two of Uncle Bats negroes off last night—for making a disturbance—no pass—broke my sword cane over one of their skulls

1838

Jan. 23 my House Servants Jane Lavenie & E. Jim broke into my store room—and helped themselves liberally to every thing—. . . I Whiped [them] . . . worse than I ever Whiped any one before

Sept. 28 Dennis and Tom "*Beauf*" ran off on Wed—. . . if I see either of them and have a gun at the time will let them have the contents of it . . .

Oct. 12 [Tom ran off again] will Whip him more than I ever Whip one, I think he deserves more—the second time he has done so this year . . .

Oct. 20 Whiped about half to day

Oct. 26 Whiped 8 or 10 for neglect to day—those that pick least weights generally most trash . . .

Oct. 27 Dennis ran off yesterday—& after I had Whiped him

Nov. 2 Dennis came in sick on Tuesday—ran off again

including F+E, has yet made a systematic search for such data. It is badly needed.

²⁵Some of the whippings listed in the Davis appendix, for example, are not found in the published diary.

²⁶David Brion Davis, ed., *Plantation Life in the Florida Parishes of Louisiana*, pp. 85-192 and pp. 202-376, *passim*.

yesterday—without my ever seeing him—will carry my Gun & small shot for him—I think I shall cure him of his rascality.

- Nov. 6 Dennis came in last night—had him fastened—attempted to Escape. ran as far as the creek but was caught—the Ds rascal on the place
- Dec. 30 Demps gave his wife Hetty a light cut or two and then locked her up to prevent her going to the Frollick—I reversed it turning her loose & fastning him

1839

- Jan. 4 Whiped evry hand in the field this evening commencing with the driver
- April 27 My hands worked verry badly—so far general Whipping yesterday
- July 19 Gave L. Dave a good Whipping for some of his rascality intend chaining him & Jack nights & Sunday till I think they are broke in—to behave
- Sept. 9 Whiped G. Jerry & Dennis for their shirking
- Sept. 30 Had G. Jerry T. Fill and Bts Nat up here washing all yesterday as punishment—generally dirty & ragged
- Oct. 3 Lewis still out. no doubt but he is down at Uncle Bats Where his Father lives—which proves the impropriety of having slaves off the plantation
- Oct. 3 told Dennis I intended to Whip him. [Dennis fled] . . . started Jack after him—to give him \$50 if he catches him—I had rather have a negro would do anything Else than run-away. Dennis & his Brother Lewis & G. Jerry the only ones that give me any trouble to make to their part
- Oct. 4 Boy Lewis came in last night—gave him the worst Whipping I ever gave any young negro. I predict he will not runaway *soon*. Building a Jail for him. Dennis & Ginny Jerry—intend jailing them for Saturday nights 'till Monday mornings
- Oct. 13 Put Darcas in Jail last night for pretending to be sick, repeatedly—the first one ever put in the Jail & G Jerry
- Oct. 20 Gave my negros about my lot the worst Whiping they ever had
- Oct. 23 Gave every cotton picker a Whipping last night for trashing & of late my driver has lost considerable authority with them
- Dec. 23 Dennis caught
- Dec. 23 intend exhibiting Dennis during Christmas on a scaffold in the middle of the Quarter & with a red flannel cap on

Dec. 25 Let Darcas out of Jail—Dennis confined in Jail

1840

Jan. 9 Darcas began to sherk again—let her out of Jail Christmas she promised to do well & c.

April 18 gave my driver a few licks this evening, not knowing who had done bad work

April 19 had a general Whipping among the House ones & two Car- ters for stealing, &c.

July 5 had Jack rigged out this evening with red flannel on his years [sic] & a Feather in them & sheet on, "in the Quarter." every negro up. Made Alfred and Betsey ride him round the Quarter dismount and take a kiss, for quarreling, Jack & Lize, Frank & Fanny the same.

July 30 [The cook Lavenia had run away and was found] Lavenia thought she had been whipped unjustly owing to Jane (the Cook), let Lavenia give her a good *drubbing*, &c.

Oct. 13 I think my hands have picked cotton worse this year than in several years picked it verry trashy & not better weights nor as good as *common*, intend Whipping them *straight*

Oct. 15 am sattisfied the best plan is to give them every thing they require for their comfort and never that they will do without Whipping or some punishment

1841

Jan. 3 [Barrow gave the Negroes a dinner] and afterwards in- spected their manners in the Ballroom several acted very rude as usual. put them in Jail

Aug. 1 Ginney Jerry has been sherking abouy ever since Began to pick cotton. after Whipping him yesterday told him if ever he dodged about from me again would certainly shoot him. this morning at Breakfast time Charles came & told me that Jerry was about to run off. took my Gun found him in the Bayou behind the Quarter, shot him in the thigh

Sept. 16 Ginney Jerry ran off Last Thursday to day a week, after being shot, Will shoot to kill him should I be fortunate enough [sic] to meet him, Will sell him, &c.

Oct. 2 More hands attempted to sherk for two weeks past than I ever knew, Gave a number of them a good *flogging*

1842

June 15 [Ginney Jerry ran away again] has not been touched this, nor have I said a word to him, pray for a shot at him

Nov. 6 Friday night Jack let Jerry slip for purpose of getting a pig thinking as Jerry was Jailed at night there would be no

suspicion of him—for some reason told Alfred Jerry had a pig in his house A. went and found it as Jack thought. put him in Jail & in the stocks in the morning there was nothing of Jerry stocks Broke & door—no doubt some one turned him out—one concerned in the Pig—gave about a dozen severe Whipping in the Yard & all—Jack old Jenny & Darcas the most severe hand sawing

1844

- Nov. 28 Whiped all my grown cotton pickers to day
 Nov. 29 [Dennis ran off and was then caught] gave him the worst Whiping he ever had—& ducking

1845

- May 27 [Darcas cut her husband with a hatchet in the hip] very dangerous cut—will make her sick of the sight of a Hatchet as Long as she Lives
 June 4 missed several of my young Hogs, found 8 or 10 Guilty, ducked & gave them a good thrashing, Mr. *Ginney* Jerry next morning Felt insulted at his treatment & put out, would give “freely” \$100 to get a shot at him
 Sept. 6 The negro hunters came this morning Were not out long before we struck the trail of *Ginney* Jerry, ran and trailed for about a mile *treed* him, made the dogs pull him out of the tree, Bit him very badly, think he will stay home awhile
 Oct. 18 Fell quite unwell for two days past, effect of negro hunting
 Oct. 27 Went with the negro Dogs to Hunt *Ruffins* runaways, & his small house boy Ed. ran off still out, 12 years of age—no Luck—negro dogs here—tired of them
 Nov. 11 the negro dogs to Mrs *Wades* Quarter. . . . dogs soon tore him naked, took him Home Before the other negro & made the dogs give him another over hauling, has been drawing a kife & Pistol on persons about Town

It is surprising in using so rich a source that these diary entries were entirely neglected. They reveal much about the labor incentives Barrow used with his slaves. More than once, for example, Barrow penned suggestive diary notations such as “had a general Whipping frolick,” “whiped about half to day,” “general Whipping yesterday,” “intend Whipping them straight,” “whiped all my grown cotton growers to day.” None of these general whippings “counted” in the list of whippings. The diary, in fact, reveals that general whippings of productive Barrow male and female slaves occurred quite regularly: there were at least six collective whippings—1837, 1838, twice in 1839, 1840, and 1841—between 1837 and 1841. The diary also listed other punishments. In his fine dissertation on the slave family, Bobby Jones con-

cluded that Barrow resorted to “practically every known form of chastisement slaveholders used.” Jones pointed out:

During his career, Barrow resorted to chains; extra work; whipping; humiliation, such as making a man wear women’s clothing and parade around the quarters; imprisonment; stocks; “raked several negro heads to day;” “staking out”; “hand-sawing”; and using or ducking in water which occurred in October and November.

Jones figured that “hand-sawing” probably meant “a beating administered with the toothed-edge of a saw.”²⁷ The diary extracts reprinted in these review-essay pages include yet other punishments, including the occasional shooting of a runaway. It is not inappropriate to ask—especially in a study which assesses the relative importance of slave physical punishments—why F+E failed to weigh the full punishment record reported in the diary. That source, after all, serves as the single piece of evidence on slave punishments.²⁸

Barrow’s Cotton Pickers (Field Hands) Were Frequently Whipped.

The Davis appendix, it turns out, can measure the frequency with which an owner used a whip, and more importantly suggest the relationship between whipping and slave labor “efficiency,” even hinting that Barrow’s field hands—the women as well as the men—had not internalized either Barrow’s or F+E’s conception of the “‘Protestant’ work ethic.” Only the Davis appendix “Misconduct and Punishments: 1840-1841” is used in what follows. Other methods of negative labor discipline are put aside (such as ducking, jailing, and even “hand-sawing”), and it is assumed that the list is the full record of all slaves whipped. Slave misconduct and whippings are examined but just for those slaves listed as cotton pickers by Barrow in other appendices published by Davis (two cotton picking lists dated November 3, 1838 and November 10, 1842). This analysis does not account for the misconduct and whipping of non-cotton pickers, particularly house servants. But it tells a good deal about those slaves who picked cotton, an activity of some importance on the Barrow plantation. Their misconduct and subsequent whipping indicate a pattern of slave and planter

²⁷Bobby Jones, “A Cultural Middle Passage . . .,” University of North Carolina, unpublished Ph.D., 1965, pp. 57-58. This source is cited in the F+E bibliography so that if the authors missed such entries in examining the diary itself, they might have noticed them in reading this unusually important study.

²⁸The fact that this is the single piece of evidence used by F+E to deal with physical punishment does not deter the economist Peter Passell from concluding that “Fogel and Engerman find no . . . pattern of abuse.” The “economic” findings in T/C do not surprise this reviewer, but “what is surprising is the general level of dignity accorded the slaves in other aspects of life.” (Passell, Review of T/C, *New York Times Book Review*, 28 April 1974, p. 4.)

behavior entirely contradictory to the F+E thesis about slave punishments and slave work habits. The table below indicates the frequency with which Barrow whipped his cotton pickers. Three of four were whipped at least once during 1840-1841. Seven of ten women felt the whip at least once. In all, fifty of sixty-six male and female cotton pickers were whipped at least once in this brief period. These fifty slaves together were whipped no fewer than 130 times during 1840-1841. The cotton pickers, incidentally, accounted for four of five of the 160 whippings listed by the historian Davis. If we add to this data the names of women who gave birth to children during 1840-1841 (they were listed in a separate appendix), it is learned that twelve female cotton pickers gave birth to fourteen children in these years, and that seven were whipped in this period (two of them twice, and a third no fewer than four times). Some cotton pickers—men and women alike—were not whipped at all. Let us consider them—about one in four of the Barrow cotton pickers—“efficient” field laborers. One in ten of the rest was whipped at least five times. Slightly more than two in five felt the whip at least three times. Among the cotton pickers whipped three or more times, 47.6% were women and 37.9% were men.

Frequency of Whippings of Barrow Male and Female Cotton Pickers in 1840-1841

Number of Times Whipped	Male Cotton Pickers		Female Cotton Pickers		All Cotton Pickers	
	Number	Percent Whipped	Number	Percent Whipped	No. Whipped	Percent
0	7	19.4%	9	30.0%	16	24.2%
1	8	22.2%	5	16.7%	13	19.7%
2	10	27.8%	6	20.0%	16	24.2%
3-4	8	22.2%	8	26.6%	16	24.2%
5+	3	8.3%	2	6.7%	5	7.6%
Total	36	100.0%	30	100.0%	66	100.0%

The Reason Barrow Whipped Most Slave Men and Women: Inefficient Labor.

The same appendix in which Davis listed whippings also includes evidence indicating that varieties of slave “misconduct” detected by Barrow, misconduct that led to physical punishment. Most of Barrow’s slaves were whipped for not conforming to the Protestant Work Ethic. It is hardly a complete list of incidents of slave misconduct in 1840-1841 but serves, nevertheless, as a most useful document bearing directly on the F+E thesis that slave owners had successfully transformed the “work ethic” of their slaves. Barrow sometimes listed

a disorderly slave but failed to describe the particular "disorder." Nevertheless, 267 individual disorderly acts were described, 80.9% of all those listed. Women committed slightly more than two in five (43%). A variety of "disorderly" acts were recorded including familial quarrels, child neglect, theft, "impudence," visiting town, and running away. Failure to keep the evening curfew fixed by Barrow was a frequent disorder. But—most significantly—nearly three in four (73 percent) of the acts listed related directly to inefficient labor: "for not picking as well as he can"; "not picking cotton"; "very trashy cotton"; "covering upon cotton limbs with ploughs"; "for not bringing her cotton up"; and so forth. A slight but not significant difference existed between the slave males and females: two in three acts of misconduct by females related to labor behavior as contrasted to nearly four in five (78%) acts by males. The frequency of whippings among the cotton pickers has been examined, and now the frequency of recorded acts of misconduct among these same persons is studied. In all, the sixty-six cotton pickers engaged in no fewer than 181 disorderly acts during 1840-1841. The average per hand did not differ between men (4.3) and women (4.2). Men (86.2%) more commonly engaged in misconduct than women (77%), but the difference should not have greatly pleased Barrow. Overall, four in five cotton pickers engaged in one or more disorderly acts in 1840-1841. Once again, we do not include the twelve men and women who did not commit a detected disorderly act. Among those with disorderly records, four of five committed three or more disorderly acts. As a group, a slightly higher percentage of women than men committed seven or more disorderly acts. Is it possible to describe these male and female slave cotton pickers as members of a well-disciplined, orderly, and efficient slave laboring class? To characterize them so distorts the historical record kept by the planter Barrow.

Frequency of Individual Acts of Misconduct by Barrow
Plantation Male and Female Cotton Pickers, 1840-1841

Number of Acts of Misconduct Per Cotton Picker	Male	Female	Total
0	5	7	12
1	2	2	4
2	4	3	7
3-4	9	4	13
5-6	7	6	13
7-9	6	6	12
10+	3	2	5
Total Slaves	36	30	66

Frequency of Recorded Acts of Misconduct Among Male and Female Cotton Pickers Who Committed One or More Acts of Misconduct, Barrow Plantation, 1840-1841

Number of Disorderly Acts	Percent of Cotton Pickers Committing	Disorderly Acts	
	Male	Female	Total
3 or More	80.6%	75.3%	79.7%
7 or More	29.0%	34.8%	31.5%

The Most Productive Cotton Pickers Were Whipped More Frequently and Were More Disorderly Than the Least Productive Cotton Pickers.

In 1838 and 1842 lists also gave the amount of cotton picked each year by individual slaves, and much of social importance is learned by examining the relationships between the most productive cotton pickers and whippings and acts of recorded misconduct during 1840-1841. Twelve men and twelve women were counted as Barrow’s best field laborers. It is quite revealing to compare them to the least productive cotton pickers and that is illustrated below. The more productive cotton pickers—both the male and the female pickers but especially the females—were much more disorderly and were more frequently whipped than the less productive cotton pickers. Given their absolute and relative record of misconduct (nearly all of it is related to “inefficient” labor), is it possible to hint that these slave men and women had drunk deeply of the “ ‘Protestant’ Work Ethic”? If the main thrust in the arguments of F+E is sound, the least productive workers should have been more disorderly and should have received more frequent whippings.

MALES					FEMALES				
Name	Rank Among All Cotton Pickers		1840-1841 Disorderly Acts	Whippings	Name	Rank Among All Cotton Pickers		1840-1841 Disorderly Acts	Whippings
	1838	1842				1838	1842		
Atean	1	1	3	2	Betsey	1	3	5	2
Ben	3	4	5	2	Darcus	5	7	6	2
Dave B	2	2	12	8	Fanny	10	6	6	2
Demps	8	6	6	2	Creasy	9	9	8	3
Lewis	10	10	6	3	Hetty	4	8	2	1
D. Nat	9	3	8	4	L Hannah	3	4	3	1
Randall	7	7	10	2	Luce	8	9	7	4
L. Tom	11	9	3	3	Oney	6	—	9	4
Levi	4	8	2	1	Patience	7	—	12	6
Dennis	—	5	8	2	Lize	2	1	4	2
Thornton	4(5)	—	1	0	Milley	12	2	6	5
Kish	4(6)	—	0	0	Sidney	11	5	0	0
N			64	29				68	32
Highest Pick	622	520				443	425		
Lowest Pick	413	385				273	300		

	Average Number of Disorderly Acts		Average Number of Whippings		Number of Slaves	
	Males	Females	Males	Females	Males	Females
Most Productive Pickers	5.3	5.8	2.4	2.7	12	12
Least Productive Pickers	3.7	3.2	1.9	1.1	24	18

Why the Barrow Cotton Pickers Had Not Internalized the “Protestant Work Ethic.”

That the Barrow cotton pickers had not internalized the “ ‘Protestant’ Work Ethic” is further suggested by their ages and the moment in time for which a record exists of their behavior. The approximate ages of fourteen male and sixteen female cotton pickers in 1840 can be learned from the 1854 inventory. All except three of the males whipped were between the ages of 19 and 26. The others were older, the oldest among them aged 37. Betsey was 45, and another of the female cotton pickers was a 13-year-old, but nearly all of the other eleven women whipped were between the ages of 15 and 26. The median age of cotton pickers whipped was nearly the same for men (23.8) and women (23.2). That means that these men and women had grandparents probably born in the 1760s and great-grandparents who probably were native Africans enslaved in the New World. These men and women were a few generations removed from initial enslavement. Nevertheless, three of four among them had to be whipped—nearly always for labor inefficiency—during 1840-1841. Internalizing any new “ethic” (work or otherwise) is a social process and takes time. New attitudes toward work are not learned overnight. These same cotton pickers, moreover, were members of the last generation of adult Afro-American slaves. Upon emancipation, some were grandparents, and most were in their middle forties. Surely if any generation of enslaved Afro-Americans had internalized the work ethic prized by their owners, it had to be this one. It was not. Barrow himself knew why. On April 16, 1840, he wrote in his diary: “am directing them to make a slow & sure lick in one place & to cut the full width of the hoe every time—unless reminded of it they would stand & made 4 or 5 licks in one place, tire themselves & do no work, have several grown ones that work harder & do less work than any in the field.” He added disgustedly two days later: “—there never was a more rascally set of old negroes about any lot than this. Big Lucy Anica Center & cook Jane, the better you treat them the worse they are, Big Lucy the leader,

corrupts every young negro in her power . . . gave my driver a few licks this morning, not knowing who had done bad work.”²⁹ There is much to learn from just these two diary entries. Barrow complained bitterly about the older slaves, the most “rascally set” he knew. And he regularly whipped the younger slaves during 1840-1841. If what F+E call the “Protestant” Work Ethic had been successfully internalized by the Barrow slaves, the values associated with it would have passed along from slave generation to slave generation. In this instance, that means from slave parents born in the late eighteenth or early nineteenth centuries to their children who lived into the Civil War. But, according to Barrow, the opposite happened. Too many of the “young” slaves listened to Big Lucy, and her message quite obviously differed from that emphasized by Barrow. Barrow, therefore, had an unusually difficult task and was kept busy “transforming” different generations of enslaved Afro-Americans. That fact may explain the frequency with which he used the whip. We have come a long way from the thoroughly misleading sentence that “the record shows that over the course of two years, a total of 160 whippings were administered, an average of 0.7 whippings per hand per year.” That pseudo-statistic fails to explain Barrow’s behavior, the behavior of his cotton field hands, and the relative importance of physical punishment as a form of negative labor incentive.

Reviewing T/C, the historian David Rothman complains that F+E have made too much of the Barrow whippings:

. . . Fogel and Engerman offer a very weak analysis of physical punishments on the plantation. In part, this is a result of a paucity of quantitative data on whippings. One owner, Bennet Barrow did keep some records, and these are tabulated—an average of 0.7 whippings per hand took place each year. But Barrow was a very special sort of a planter, self-consciously dedicated to the proposition that the plantation should run as a factory. He fits the Fogel-Engerman model *too* well to stand as representative of the system.³⁰

Rothman is right in calling the analysis “very weak” but wrong in suggesting that Barrow “fits the Fogel-Engerman model too well.” Barrow, it has been seen and shall soon be seen again (because F+E return to this Louisiana cotton planter two more times), hardly fits the F+E “model” at all. That poses three different questions. Was Barrow untypical? Is the F+E “model” inadequate? And, most importantly, why did Barrow behave in the ways revealed by the data in these pages?

Why Barrow Whipped Slaves So Frequently and Whether Barrow Was “Typical.”

The third question, of course, is the most important. Unless

²⁹Davis, ed., *Florida Parishes*, pp. 191-193.

³⁰David Rothman, “Slavery in a New Light,” *New Leader*, 27 May 1974, pp. 8-9.

Barrow's actions merely reflected a personal satisfaction in whipping slaves so frequently ("a cruel master"), we must look elsewhere than to his psychic needs or make-up to begin to comprehend his behavior. And the only place to start is with his slaves and their behavior. The whippings on his plantation make social sense primarily in relation to the misconduct among his slaves and to Barrow's conception of "misconduct." The essential flaw in the F+E "model" is its failure to make a place in the historical process for slave behavior not directly determined by the policies and practices of their owners. Slaves "behave" in their "model" but only in response to master-sponsored stimuli. They work hard when promised rewards or threatened with physical punishment. The Barrow slaves, of course, did not have to read their owner's diary or major in college algebra to know how frequently and why he used the whip. Ordinary vision and common sense made that clear. More than this, they surely had enough familiarity with Barrow and his whip to realize how their owner defined slave misconduct. And yet their acts of misconduct during 1840-1841 were by any measure numerous. Those acts of misconduct—mostly variants on the theme of not working "hard enough"—provoked their owner to use the whip. A "model" that fails to take into account the behavior of the slaves cannot explain the behavior of their owners.

Whether or not Barrow's response to the behavior of his cotton field hands was "typical" is a more difficult question to answer. Too little, for one thing, is yet known about the every day behavior—especially in the fields—of slaves like those who lived on the Barrow place. More is known, of course, about Barrow himself. He was born in 1811, and, according to his biographer Davis, his "mode of living was that of a well-to-do planter." "A substantial and respected man in his community," observed Kenneth Stampp, "Barrow inherited lands and slaves from his father; he was in no sense a crude parvenu." (Stampp, incidentally, hardly cited the Barrow diary in *The Peculiar Institution*. Barrow is only mentioned twice in the index.) There are more substantial hints that Barrow was not unusual among Louisiana cotton planters. At least one planter nearby copied Barrow's plantation "rules." Bobby Jones points out that Barrow's plantation rules, reprinted as an appendix in the Davis volume, were not original to this Louisiana planter. He had copied them verbatim from a "restrictive" system of plantation management advocated by the *Southern Agriculturalist* and then reprinted in the *Southern Cultivator* (March 1846). His biographer Davis insists that in his "general outlook on the institution of slavery" Barrow was "typical of his time and section." Davis adds:

In general Barrow treated his slaves better and took more time in the organization of his labor system than did many of the neighboring planters. He was in

the planting business for the sole purpose of making money and evidently believed that a contented black would work far better than one who was dissatisfied with his surroundings.

When a favored slave died, Barrow could say that "a more perfect negro never lived." But such sentiments should not be exaggerated. Barrow believed—according to his diary—that "negros are not capable of self-government—want of discretion—judgement &." The historian Davis understood Barrow somewhat better than he understood the Barrow slaves. With the 1840-1841 record of slave misconduct before him, Davis nevertheless concluded: "On the whole the Negro was a tractable individual. Barrow's slaves gave him very little trouble. That they were not mean or vicious is evident; but that they often needed punishment for the breaking of plantation rules must be admitted." We need waste little time with the tone of gentle apologetics that marred the abilities of the historian Davis. Despite this shortcoming, Davis had some insight into Barrow's management policies. "As a rule," observed Davis, punishments were "designed to be only severe enough to be conducive to good discipline." Brutal whippings were exceptional. "Barrow," Davis goes on, "was constantly devising ingenious punishments, for he realized that uncertainty was an important aid in keeping his gangs well in hand." The range of punishments—aside from whippings—has been indicated. Duckings followed brutal whippings. And, according to Davis, "for the most flagrant violations the Negroes were 'staked down.' This was apparently the old punishment of staking them to the ground on their backs, spread-eagle fashion. Periods of staking were usually short." But especially troublesome slaves were staked down for as long as between 12 and 15 hours.

Barrow, nevertheless, also conformed in important ways to the managerial pattern emphasized by F+E. According to Davis, the slaves lived in "comfortable frame buildings." Their owner spent a "sizable" amount of money each year for clothing. Field hands ordinarily got four or five pounds of meat each week. The Barrow slaves enjoyed regular holiday celebrations and even dinners and dances. Their owner built a dance hall, but he also built a jail. In describing his conception of the plantation, Barrow used metaphors more appropriate to Yankee New England. "A plantation," he insisted, "might be considered as a piece of machinery, to operate successfully, all of its parts should be uniform and exact." That was an economic aspiration, not an economic or social reality. The slave Dave Bartley is a case in point. He was one of Barrow's best cotton pickers. At Christmas in 1839, he and the slave Atean were singled out for "their fine conduct." Each received a suit of clothes from Barrow. During 1840-1841, Dave Bartley committed more acts of misconduct and received more whippings than any other Barrow slave: 12 instances of misconduct and 8

whippings were recorded. Only one other slave committed as many as twelve acts of misconduct. Her name was Patience. She was whipped six times. Neither Bartley nor Patience was “uniform and exact.” That was their “trouble.” They were factors of production, but did not exactly fit into Barrow’s definition of the plantation as “a piece of machinery.” That was so even though Dave Bartley had been given a suit of clothing by his owner.³¹ The Columbia University economist Peter Passell who reviewed T/C in the *New York Times Book Review* would have benefited from knowing Dave Bartley. The data in T/C describing the relatively decent treatment of enslaved Afro-Americans did not shock Passell. “All not very surprising,” he said, “for a society that treated slaves as capital; good businessmen oil their machines.”³² Passell apparently does not know the difference between men and women like Dave Bartley and Patience and a steam engine or a cotton gin.

Negative Labor Incentives and the Ubiquitous Words “More” and “Most” in T/C.

We are finished for the moment with Bennet Barrow and his slaves but not yet with F+E on negative labor incentives. A brief paragraph follows the “summary” of the Barrow whippings to remind the reader once again that whipping was common in many places prior to the nineteenth century, even quoting from what is called “the Matthew’s Bible.” That probably means the First Gospel. The next paragraph “generalizes” about whipping and contains ten sentences which indicate that none of the evidence used is “quantitative.” The sentences are numbered *seriatum*:

(1) To attribute the continuation of whipping in the South to the maliciousness of masters is naive. (2) Although *some* masters were brutal, even sadistic, *most* were not. (3) The *overwhelming majority* of the ex-slaves in the W. P. A. narratives who expressed themselves *on the issue* reported that their masters were *good men*. (4) *Such men* worried about the proper role of whipping in a system of punishment (sic) and rewards. (5) *Some* men excluded it altogether. (6) *Most* accepted it, but recognized that to be effective it had to be used with restraint and in a coolly calculated manner. (7) Weston, *for example*, admonished his overseer not to impose punishment of any sort until twenty-four hours after the offense had been discovered. (8) William J. Minor, a sugar planter, instructed his managers “not (to) cut the skin, nor to punish in a passion.” (9) *Many* planters forbade the whipping of slaves except by them or in their presence. (10) *Others* limited the number of lashes that could be ad-

³¹Davis, ed., *Florida Parishes*, 11, pp. 37-41, pp. 44-48, p. 52, pp. 406-409; Stamp, *The Peculiar Institution*, p. 186, p. 189.

³²Passell, Review of T/C, *New York Times Book Review*, 28 April 1974, p. 4. Frederic Bancroft, *Slave Trading in the Old South*, p. 107.

ministered without their permission.

Sentence one is left aside for the moment. The other nine sentences are a curious mode of argument in this work, mainly because the imprecision in language and the use of isolated examples (sentences 7 and 8) are styles of historical rhetoric and argument usually scorned by cliometricians when used by non-clometricians. How typical were Weston and Minor?³³ What methods were used to establish their typicality? Sentences 2, 5, 6, 9, and 10 contain favored imprecise quantitative words such as “some” and “most” (2), “some” (5), “most” (6), “many” (9), and “others” (10). It is surprising to see how often such ubiquitous words are used. It is, of course, difficult to generalize without using words meant to describe the presence or absence of regularities, and such words are essential to the social and economic historian. But neither volume one nor volume two of T/C contains any evidence indicating how F+E uncovered such regularities in planter behavior. Sentences 3 and 4—at least as written—do not bear at all on the question of planter patterns of punishment. The point under discussion is the regularity and frequency, of slave punishment, not whether elderly former slaves, who were mostly between the ages of eight and twelve when the general emancipation occurred and, therefore, had probably never been beaten or whipped, felt their old owners “good” or “bad” men. Where furthermore is the evidence that the planters as a social class or group “*worried* about the *proper* role of whipping in a system of punishment and rewards”? *Worry* has a fairly precise meaning, but *proper* is an ambiguous word. To worry means “to feel uneasy, or anxious; fret; torment oneself and suffer from disturbing thoughts.” Did men like Bennet Barrow, William Minor, and “Weston” fret over the use of the whip and suffer disturbing thoughts? Proper has several meanings, and it is unclear which one is implied in this sentence. Do F+E mean that planters worried about how to adapt whipping to the purposes of enslavement? (“August is the proper time to vacation at Cape Cod.”) Do they mean that planters worried about conforming to established standards of behavior? Or do they mean that planters worried about whether or not whipping was right. (“It is only proper to wear underwear.”) These are quite different kinds of worries, and each has a social importance of its own.

Kenneth Stampp on Whipping and F+E on Kenneth Stampp.

Sentence one concerns historiography. “To attribute the continua-

³³It may have been that Minor did not want the skin cut because it lowered the value of a slave in the market. Who wanted to purchase troublesome property? Hardly a detached source, the *New York Tribune* (10 March 1853) reported that whipping scars cut the sale price of an adult male slave from \$750-\$800 down to \$460.

tion of whipping in the South to the maliciousness of masters is naive," insist F+E. No historians are mentioned, but this barbed sentence is aimed at so-called "neo-abolitionist" historians. Later in the first volume, the authors of T/C make it unnecessary to guess the target of their criticism:

[Kenneth] Stamppp provided testimony that cruelty was indeed an ingrained feature of the treatment of slaves. . . Cruelty, Stamppp said, "was endemic in all slaveholding communities"; even those "who were concerned about the welfare of slaves found it difficult to draw a sharp line between acts of cruelty and such measures of physical force as were an inextricable part of slavery." For Stamppp, cruelty arose not because of the malevolent nature of the slaveholders but because of the malevolent nature of the system.³⁴

Stamppp's arguments have not been fairly summarized. Here are Stamppp's sentences from which F+E drew these extracts:

Although cruelty was endemic in all slaveholding communities, it was most common in newly-settled regions. . . . [And then two paragraphs later] Southerners who were concerned about the welfare of slaves found it difficult to draw a sharp line between acts of cruelty and such measures of physical force as were an inextricable part of slavery. Since the line was necessarily arbitrary, slaveholders themselves disagreed about where it should be drawn. . . . But no master denied the propriety of giving a moderate whipping to a disobedient slave. . . . By [the] mid-nineteenth century. . . . it [the whip] was seldom used upon any but slaves, because public opinion considered it to be cruel. Why was it less cruel to whip a bondsman was a problem that troubled many sensitive masters. That they often had no choice as long as they owned slaves made the problem no easier to resolve.³⁵

Stamppp's explanation ("public opinion") for the decline of whipping is hardly satisfactory, but neither is the summary of Stamppp's analysis as "quoted" by F+E. In fact, Stamppp's analysis of whipping is as good as any we yet have and deserves to be read in full:

. . . [T]he whip was the most common instrument of punishment—indeed, it was the emblem of the master's authority. Nearly every slaveholder used it, and few grown slaves escaped it entirely. . . . The majority seemed to think that the certainty, and not the severity of physical "correction," was what made it effective. While no offense could go unpunished, the number of lashes should be in proportion to the nature of the offense and the character of the offender. The master should control his temper. . . . Many urged, therefore, that time be permitted to escape between the misdeed and the flogging. . . .

³⁴ T/C, I, pp. 229-230. The same sentence by Stamppp is quoted a second time in T/C, II, p. 220. "Where Phillips characterized slaveholders as men of good will whose treatment of slaves was generally 'benevolent in intent and on the whole beneficial in effect,' Stamppp responded: 'cruelty was endemic in all slaveholding communities' and 'even those concerned about the welfare of slaves found it difficult to draw a sharp line between acts of cruelty and such measures of physical force as were an inextricable part of slavery.'" Once more, F+E have twisted the meaning of Stamppp's argument.

³⁵ Stamppp, *The Peculiar Institution*, pp. 229-230.

Planters who employed overseers often fixed the number of stripes they could inflict for each specific offense or a maximum number whatever the offense. . . . The significance of these numbers depended in part upon the kind of whip that was used. The "rawhide," or "cowskin," was a savage instrument requiring only a few strokes to provide chastisement that a slave would not soon forget. . . . Many slaveholders would not use the rawhide because it lacerated the skin. . . . How frequently a master resorted to the whip depended upon his temperament and his methods of management. . . . Physical cruelty, as these observations suggest, was always a possible consequence of the master's power to punish. Place an intemperate master over an ill-disposed slave, and the possibility became a reality.

"Not that a substantial number of slaveholders deliberately adopted a policy of brutality. The great majority, in fact, preferred to use as little violence as possible. . . . The public and private records that do survive suggest that, although the average slaveholder was not the inhuman brute described by the abolitionists, acts of cruelty were not as exceptional as pro-slavery writers claimed."³⁶

Stamp's illustrative evidence has not been included in this extract, but it strains the imagination to suggest that Stamp's quite balanced analysis can be characterized as representing little more than either crude neo-abolitionist bias or innocent naivete. Stamp explicitly denied that "a substantial number of slaveholders deliberately adopted a policy of brutality," insisting that "the great majority, in fact, preferred to use as little violence as possible." Quite interestingly, Stamp emphasized that rational "economic" calculations often restrained the use of the whip. And the reasons given by this so-called "neo-abolitionist" historian hardly differed from those put forth two decades later by F+E.

F+E on the "Economic Cost" of Whipping and James Hammond on the Social Utility of Whipping. The Inadequate Economic "Model."

The brief discussion of whipping in T/C is followed by a still briefer discussion of other slave punishments. F+E soundly remind readers that whipping as an instrument of labor discipline declined "with the rise of capitalism" when "impersonal and indirect sanctions were increasingly substituted for direct personal ones." Hiring labor in the marketplace "provided managers with a powerful new disciplinary weapon." "Workers who were lazy, or who otherwise shirked their duties could be fired—left to starve beyond the eyesight or expense of the employer." These summary sentences hardly differ from the classic indictments of early capitalism. "Interestingly enough," F+E add,

³⁶ *Ibid.*, pp. 171-181.

“denial of food was rarely used to enforce discipline on slaves. For the illness and lethargy caused by malnutrition reduced the capacity of slaves to labor in the fields.” The jailing of slaves is mentioned but only to be dismissed as a common form of slave punishment. Nothing, however, in these “findings” is new. Stamp, for example, insisted that instances “of deliberate stinting of rations were fortunately few,” and that hardly any slaveholders “built private jails on their premises” because “they knew that close confinement during a working day was a punishment of dubious value.”³⁷ F+E have not demolished yet another “myth” but simply confirmed (without adding new evidence) what is well known. Nevertheless, there is the need for more study about the relationship between control of the food supply, planter-sponsored labor incentives, and slave social behavior. Prolonged denial of food obviously causes malnutrition just as prolonged overeating causes obesity. And that the “illness and lethargy caused by malnutrition” impair labor efficiency is self-evident. But the social issue is not whether owners denied slaves “food,” it has rather to do with how control of the food supply affected the life-chances and the behavior of slaves. The denial of a weekly meat ration on occasion did not cause illness and malnutrition, but it served by example to make clear that owners controlled the food supply. The presence of slave gardens where slaves often grew foodstuffs for family consumption does not alter the essential point. It simply makes it more complicated. Slaves did not own these garden plots, and such places could be taken from them. We need to study the relationship between control of the food supply, social dominance, and labor efficiency. Much more is involved in slave punishments than an “economic” equation or an emphasis that does no more than stress the rational decisions of “economic man.” F+E explain:

When the laborer owns his own human capital, forms of punishment which impair or diminish the value of that capital are borne exclusively by him. Under slavery, the master desired forms of punishment which, while they imposed costs on the slave, did so with a minimum impairment to the human capital which the master owned.

“Whipping,” F+E conclude, “generally fulfilled these conditions.” “Whipping,” they add, “persisted in the South because the cost of substituting hunger [*sic*] and incarceration for the lash was greater for the slaveowner than for the northern employer of free labor.”³⁸ So simple an “economic” explanation hardly does justice to the complex motivations that shaped planter behavior.

“Remember,” the articulate pro-slavery advocate James Henry Hammond insisted, “that on our estates we dispense with the whole

³⁷ *Ibid.*, pp. 172, 288.

³⁸ T/C, I, pp. 146-147.

machinery of public police and public courts of justice. Thus we try, decide, and execute the sentences, in thousands of cases, which in other countries would go into the courts." Hardly a detached observer, Hammond was anxious to minimize the harshness implicit in master-slave relationships. He wrote in answer to British critics of enslavement:

If a man steals a pig in England, he is transported—torn from wife, children, parents, and sent to the antipodes, infamous, and an outcast forever, though probably he took the super-abundance of his neighbor to save the lives of his famishing little ones. If one of our well-fed negroes, merely for the sake of fresh meat, steals a pig, he gets perhaps forty stripes. . . . Are our courts or yours the most humane? If Slavery were not in question, you would doubtless say ours is mistaken lenity. Perhaps it often is; and slaves too lightly dealt with sometimes grow daring.

A South Carolina planter and lawyer who served in the United States Senate and felt both northern free laborers and southern plantation slaves "the very mudsill of society," Hammond had doubts about the social utility of whipping. "Stocks are rarely used by private individuals, and confinement still more seldom," said the planter, "though both are common punishments for whites, all the world over. I think they should be more frequently resorted to with slaves as substitutes for flogging, which I consider the most injurious and least efficacious mode of punishing them for serious offenses. It is not degrading, and unless excessive occasions little pain. You may be a little astonished, after all the flourishes that have been made about 'cart whips,' &c., when I say flogging is not the most degrading punishment in the world."³⁹ How do we fit Hammond's plea that stocks and jails be used more frequently than the whip into a "model" of planter behavior which measures the utility of diverse punishments only by their "cost" to the planter in "labor time?" Hammond suggests the limitations of so cost-conscious a "model" when he writes that whipping was insufficiently "degrading." We are back to the meaning of words and to the inadequacies of the central F+E "model." To degrade, according to the *Oxford English Dictionary*, means to lower in "rank, position, reputation, [and] character." Why did Hammond feel whipping to be the least effective ("efficacious") mode of punishing especially troublesome slaves? It seems clear that the whip—at least in Hammond's estimation—did not have its intended social effect. It failed to lower the troublesome slave in "rank, position, [and] reputation." Rank, position, and reputation among whom? Hammond and his fellow planters? Or the enslaved themselves? Hammond surely meant the enslaved. And if that is so, it is imperative that in measuring

³⁹ "Letters on Slavery," *Pro-Slavery Argument* (1852), pp. 119-135.

the utility of whipping we understand how the enslaved interpreted the act of being whipped. On the Barrow plantation, at least, whipping did not deter misconduct. Barrow himself built a private jail. And the South Carolinian Hammond proposed that jails and stocks be used more commonly than the whip. Was it because the enslaved felt incarceration more degrading than whipping? And if so, why? A narrow economic calculus cannot explain so important a social distinction.

Bennet Barrow's Perception of Inefficient Plantation Labor and the Distortion of that Perception in T/C.

We shall turn next to the treatment of incentives meant to "reward" slaves for efficient labor but first summarize briefly what has been learned about slave punishments. The single piece of numerical evidence (the Barrow "diary") tells the opposite of what F+E report in T/C. The supplementary evidence on punishment is slight at best, and the *general* details hardly differ from those emphasized in *The Peculiar Institution*. (The tone of the analysis, of course, is quite different.) The discussion of planter-sponsored rewards to encourage productive slave labor is hardly more satisfactory. Portions of the critical paragraph used by F+E to make the transition from negative to positive labor incentives have been printed earlier in these pages, but we record the entire paragraph:

While whipping was an integral part of the system of punishment and rewards, it was not the totality of the system. What planters wanted was no sullen and discontented slaves who did just enough to keep from getting whipped. They wanted devoted, hard-working, responsible slaves who identified their fortunes with the fortunes of their masters. Planters sought to imbue their slaves with a "Protestant" work ethic and to transform that ethic from a state of mind into a high level of production. "My negroes have their name up in the neighborhood," wrote Bennet Barrow, "for making more than any body Else." Such an attitude could not be beaten into slaves. It had to be elicited.⁴⁰

Barrow entered that sentence in his diary on October 15, 1840, and it was extracted first by Davis in his essay and then by F+E.⁴¹ By lifting the sentence from the full diary entry, Davis and then F+E completely distort its meaning. Barrow was not praising his slaves for identifying their "fortunes" with his "fortunes." The full diary entry together with the entries that preceded it is as follows:⁴²

- October 1 Made all hands stop & trash cotten this morning. . . .
- October 2 . . . Women trashing cotten men doing little of every thing, *not much of any thing*

⁴⁰ T/C, I, p. 147.

⁴¹ Davis, ed., *Florida Parishes*, p. 41.

⁴² *Ibid.*, pp. 212-214.

- October 5 . . . the trashiest stuff I ever saw, some of my young Hands are doing verry Badly Ralph Wash E. Nat E. Jim Jim T. Henry Israel Harriet Sam&Maria Lewis & Randal
- October 6 . . . bad news from the Cotten market
- October 9 . . . never saw more cotten open to the Acre. & verry trashy. . .
- October 11 . . . Gave the negros shoes. . . .
- October 13 . . . I think my hands have Picked cotton worse this year than in several years picked it very trashy & not better weights nor as good as *common*, intend Whipping them *straght* [sic]
- October 15 Clear verry pleasant, Never have been more dissatisfied with my hands all Excepting 'Lize I [L?] Hannah Jensey Atean & Marget, am sattisfied the best plan is to give them every thing they require for their comfort and never that they will do without Whipping or some punishment. My negros have their name up in the neighborhood for making more than any one else & they think Whatever they do is better than any body Else.

These diary entries cannot be read as evidence that the Barrow slaves had become "devoted, hard-working, responsible slaves who identified their fortunes with the fortunes of their masters, or that Barrow had managed to "transform" the "Protestant Work Ethic" "from a state of mind into a high level of production." It may be possible to read the single sentence extracted in T/C that way but not the full October 15 diary entry and surely not the full sequence of diary entries between the first and fifteenth of October. Read in the context of the full diary entry and in relation to recorded general whippings in 1837, 1838, twice in 1839, and again in 1840 as well as in relation to the frequency of punishment ("whippings") during 1840-1841, it is quite clear that Barrow's single sentence meant to scorn the self-image that Barrow's slaves had of themselves and that others, including perhaps whites nearby, had of them. Barrow knew better than this: that is plainly and incontestably made known by the surrounding diary entries and by Barrow's behavior. A single sentence in the diary has been transformed in meaning to bolster a thin argument. The same rules of evidence, however, should apply to literary sources as to quantitative data. Barrow, of course, used positive labor incentives to elicit good work from his slave men and women, and Davis adequately summarizes them:

He devised many ways to increase their labors and to make them more con-

tented; they were well fed and well housed; they received gifts of money at Christmas time; they were divided into rival gangs at cotton-picking time with the losing side giving dinners to the winners; and individuals sometimes raced down the cotton row . . .⁴³

But this summary of positive labor incentives in no way sustains the October fifteenth diary entry extracted so inaccurately by F+E. And that is because the full entry told that Barrow believed he had failed to elicit adequate productive work from his slaves. "The better you treat them," Barrow had written earlier that same year, "the worse they are." And why not? Barrow saw to it that the most productive slaves were better fed than the least productive slaves. But they were also the slaves whipped more frequently, and when better fed it was the least productive field hands who fed them.

C. POSITIVE LABOR INCENTIVES AND SLAVE WORK HABITS.

It has been seen that the single piece of evidence used in T/C to deal with negative labor incentives (the Barrow whipping list) directly and in more ways than one contradicts the central theme of this book. The analysis turns now to F+E treatment of positive labor incentives: their use by slave owners, their importance relative to negative labor incentives, and the ways in which F+E use quantitative and literary data to show that a "system" of positive labor incentives encouraged enslaved Afro-Americans to internalize the "Protestant Work Ethic." F+E wisely divide such positive incentives into three categories: "short-run" rewards, rewards "over periods of intermediate duration," and rewards of "a long-term nature, often requiring the lapse of a decade or more before they paid off." The third of these types of positive incentives is considered later in these pages. It is by far the most important, and F+E make a striking reassessment of the slave rural and urban occupational structures to describe it. It shall be seen that T/C add nothing new to the conventional treatment of short-run and intermediate rewards, and that the data used to construct slave occupational structures and to show that conventional scholars have given inadequate attention to the relatively "numerous" slaves who were neither field hands nor common laborers are based upon a misreading of conventional scholarship, the use of inaccurate sources, and a misuse of probate records. It shall, therefore, be seen that the opportunity for slaves to rise within the slave social hierarchy was much narrower than F+E argue, and that "achievement" based upon "mobility" opportunities played a negligible role as a positive labor incentive.

⁴³ *Ibid.*, p. 41.